COLD PAPER WAR

THE PRO SE LITIGATION GUIDE

A Field Manual for Evidence, Procedure, Public Records, Digital Preservation, and Civil-Rights Litigation

Volume 1 — Foundations, Evidence & Litigation Architecture

Prepared as an open-source public-interest project

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“The paper trail is the battlefield.”

IMPORTANT NOTICE

This guide is an educational and organizational resource. It is not a substitute for advice from a licensed attorney, does not create an attorney-client relationship, and does not guarantee any litigation result. Federal and state procedural rules differ, deadlines can be jurisdiction-specific, and local rules may control filing, service, discovery, and motion practice. Before filing anything, verify the current rules, statutes, standing orders, and court-specific requirements that apply to the matter.

The objective is disciplined self-representation: preserve evidence, identify the correct actors, state legally cognizable claims, respect procedural rules, and build a record that another lawyer, journalist, investigator, or court can independently understand.

CORE PRINCIPLE

> **Do not begin with outrage. Begin with the record. The strongest pro se case is ordinarily built from contemporaneous evidence, precise chronology, identifiable decision-makers, applicable law, and a clean chain connecting facts to relief.**

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PART I — THE COLD PAPER WAR METHOD

1.1 The Premise

“Cold Paper War” is a working methodology for converting a chaotic dispute into an auditable record. The method treats litigation as an information problem before treating it as a rhetorical contest. The question is not simply, “What happened to me?” It is, “What can be proven, by whom, through which records, under which rule, and with what remedy?”

1.2 The Five-Layer Record

Layer	Function
1. Facts	What physically or digitally occurred.
2. Actors	Who acted, directed, approved, received notice, or possessed relevant records.
3. Evidence	Documents, recordings, metadata, logs, photographs, messages, witnesses, and public records.
4. Law	Constitutional provisions, statutes, regulations, rules, ordinances, contracts, and controlling precedent.
5. Remedy	What the court or agency can actually order, award, or preserve.

1.3 The Rule: Separate Facts From Conclusions

A credible case file distinguishes between an observed fact, an inference, and a legal conclusion. For example: “The agency received the request on June 4” is a factual proposition. “The agency intentionally concealed the record” is an inference that requires supporting evidence. “The agency violated the Constitution” is a legal conclusion for which the pleading must identify a cognizable right, actor, causation theory, and applicable doctrine.

1.4 The Litigation Engineer’s Notebook

Maintain one master chronology. Each entry should contain: date and time; location; event; actor; source; exhibit number; disputed/undisputed status; legal significance; and next preservation or discovery action. Never rely on memory alone when a contemporaneous record can be obtained.

PART II — CASE INTAKE AND LITIGATION ARCHITECTURE

2.1 The One-Page Case Map

Before drafting a complaint, create a one-page case map. Identify the plaintiff, each proposed defendant, jurisdiction, venue, factual nucleus, protected right, injury, causation theory, available evidence, requested relief, and immediate deadlines. If the theory cannot fit coherently on one page, the case is usually not yet sufficiently organized.

2.2 Defendant Matrix

Defendant	Role	Act/Decision	Evidence	Potential Doctrine
Individual	Officer/employee	Specific conduct	Report/bodycam/etc.	Personal liability / immunity
Supervisor	Command/manager	Policy, direction, knowledge	Orders/emails/logs	Supervisory liability where cognizable
Municipality	Entity	Policy/custom/failure	Policies, patterns, records	Monell
Private actor	Contractor/vendor	Conduct under color of law?	Contract/data/communications	State action analysis

2.3 Jurisdiction Before Merits

Federal-question jurisdiction, diversity jurisdiction, supplemental jurisdiction, sovereign immunity, Eleventh Amendment issues, abstention, standing, ripeness, mootness, venue, and personal jurisdiction are structural questions. A strong factual claim can still fail if the court lacks jurisdiction or the defendant is immune from the requested relief.

2.4 Relief Matrix

Separate declaratory, injunctive, prospective, compensatory, nominal, punitive, statutory, and equitable remedies. Match each requested remedy to a defendant who can legally provide it. Do not ask a court for relief that exceeds its jurisdiction or conflicts with immunity doctrines.

PART III — EVIDENCE, PRESERVATION, AND ESI

3.1 Preservation Begins Before Discovery

When litigation is reasonably anticipated, preservation becomes a central evidentiary issue. A preservation notice should identify the dispute, relevant custodians, categories of information, likely systems, relevant time period, and foreseeable forms of electronically stored information (ESI). It should request preservation rather than attempt to dictate an opponent's entire litigation strategy.

3.2 ESI Categories

• Email, attachments, and mailbox archives

• Text messages and messaging applications

• Body-worn camera and dash-camera recordings

• CAD, dispatch, RMS, and incident-management systems

• Access-control and badge records

• ALPR/Flock and other automated-location records

• Cloud storage, shared drives, and collaboration platforms

• Photographs, video, and original device files

• System audit logs and relevant metadata

• Contracts, vendor records, data-retention schedules, and deletion policies

3.3 The Evidence Chain

For every important exhibit, record where it came from, when it was obtained, who supplied it, whether it is original or derivative, what transformations occurred, and where the original is stored. A screenshot may show content; it may not establish the full provenance of that content. Whenever feasible, preserve native files and associated metadata.

3.4 The Preservation Ledger

Date	Source/System	Information	Custodian	Preserved?	Notes
____	_____	_____	_____	Yes/No	_____
____	_____	_____	_____	Yes/No	_____
____	_____	_____	_____	Yes/No	_____

PART IV — PUBLIC RECORDS AND ADMINISTRATIVE RESEARCH

4.1 Public Records as Investigative Infrastructure

Public-records requests should be treated as structured discovery outside the courtroom. Define the agency, record category, date range, custodial system, search terms where appropriate, retention issue, and desired production format. Avoid vague demands when a narrower request can establish a decisive fact.

4.2 The Request Ladder

Level 1 — Basic incident records: reports, logs, notices, citations, dispatch records.

Level 2 — Decision records: policies, directives, emails, meeting minutes, approvals.

Level 3 — Technology records: vendor contracts, system descriptions, retention schedules, audit logs.

Level 4 — Financial records: invoices, purchase orders, grants, reimbursements, vendor payments.

Level 5 — Pattern evidence: prior complaints, similar incidents, training materials, statistical records.

4.3 Request Discipline

Track every request with a unique identifier, submission date, statutory deadline, response, exemptions asserted, fees, rolling productions, and unresolved categories. Preserve the agency’s response exactly as received. A refusal can itself become part of the evidentiary chronology, but only if the underlying legal requirements and applicable exemptions are analyzed carefully.

PART V — FEDERAL CIVIL-RIGHTS FRAMEWORKS

5.1 Section 1983 Is a Vehicle, Not a Cause of Action for Every Wrong

42 U.S.C. § 1983 generally provides a mechanism for enforcing certain federal rights against persons acting under color of state law. The complaint must identify the underlying constitutional or federal statutory right, the state action, the responsible defendant, and the causal connection between the defendant's conduct and the alleged deprivation.

5.2 Common Constitutional Frameworks

Framework	Analytical focus
First Amendment	Speech, religion, assembly, petition, association; retaliation analysis may apply depending on facts.
Fourth Amendment	Search, seizure, property, reasonableness, warrants, and related doctrines.
Eighth Amendment	Generally concerns punishment following conviction; applicability to pretrial or noncustodial contexts requires care.
Fourteenth Amendment	Due process, equal protection, and incorporation doctrines.
ADA / Rehabilitation Act	Separate statutory frameworks with distinct elements, defenses, and defendant-specific requirements.

5.3 Immunity Must Be Analyzed Early

Qualified immunity, absolute immunity, sovereign immunity, Eleventh Amendment doctrine, municipal immunity, and statutory immunities can materially change who may be sued and what relief is available. A national guide should never treat "government defendant" as a single legal category.

PART VI — MUNICIPAL LIABILITY AND MONELL ANALYSIS

6.1 The Monell Question

A municipality is not ordinarily liable under § 1983 merely because it employs a person who allegedly violated the Constitution. The plaintiff must identify a municipal policy or custom, or another recognized basis for municipal responsibility, and connect that municipal action to the constitutional injury.

6.2 The Monell Matrix

Theory	Evidence to investigate	Causation question
Express policy	Written policy, ordinance, directive	Did the policy itself cause the injury?
Custom/practice	Repeated incidents, records, testimony	Was the practice sufficiently established?
Final policymaker	Authority structure, decisions	Who possessed final policymaking authority?
Failure to train	Training materials, incidents, supervision	Was the deficiency causally linked and legally sufficient?
Failure to supervise	Complaints, discipline, oversight	Was the alleged deficiency connected to the injury?

6.3 Pattern Evidence Requires Discipline

A collection of incidents is not automatically a legally sufficient municipal custom. The guide should require the researcher to establish similarity, frequency, chronology, decision-maker knowledge where relevant, and a plausible causal bridge. Avoid turning every prior complaint into “pattern and practice” without analyzing its evidentiary value.

PART VII — DISCOVERY: RULES 26, 33, 34, 36, 37 AND 45

7.1 Discovery as a Controlled Information System

Discovery should be sequenced rather than sprayed indiscriminately. Begin with the information necessary to prove or defeat the central elements of the claims and defenses. Requests should be proportional, relevant, reasonably particularized, and tied to the issues actually before the court.

7.2 The Core Federal Discovery Toolkit

Rule	Function
Rule 26	Initial disclosures, scope, proportionality, conferences, and discovery planning.
Rule 33	Interrogatories directed to parties, subject to applicable limits and objections.
Rule 34	Requests for production, inspection, copying, and ESI.
Rule 36	Requests for admission; useful for narrowing genuinely disputed facts.
Rule 37	Motions to compel and sanctions in appropriate circumstances; preservation failures may raise spoliation issues.
Rule 45	Subpoenas to nonparties, subject to procedural and geographic requirements.

7.3 The “Sledgehammer” Is Not the Objective

> **Aggressive discovery is not synonymous with effective discovery. The objective is admissible, relevant, proportional information that advances a claim or defense. Overbroad demands can invite objections, sanctions, delay, and judicial skepticism. Precision is the harder—and usually stronger—weapon.**

PART VIII — MOTIONS, BRIEFING, AND THE LITIGATION RECORD

8.1 Build Every Motion Around a Proposition

Each motion should answer four questions: What happened? What rule governs? Why does the evidence satisfy or defeat that rule? What precise relief should the court enter? Avoid burying the requested ruling beneath rhetoric.

8.2 The Citation Ladder

• Primary authority: Constitution, statute, rule, regulation, ordinance.

• Binding precedent: controlling appellate decisions and applicable Supreme Court authority.

• Persuasive authority: other circuits, district courts, state courts, treatises, and secondary sources.

• Record evidence: declarations, exhibits, transcripts, admissions, authenticated records.

8.3 The Record Is the Product

A court does not decide a case from the private research notebook of a litigant. Facts must enter the record through procedurally appropriate mechanisms. Preserve source documents, identify exhibits consistently, cite the record precisely, and comply with page limits, formatting requirements, deadlines, and local rules.

PART IX — DAMAGES, REMEDIES, AND SETTLEMENT POSITIONING

9.1 Quantify Before You Demand

Separate economic loss, property loss, medical or other documented expenses where legally recoverable, statutory damages, nominal damages, emotional-distress damages where permitted and supported, punitive damages where legally available, attorney-fee provisions, and equitable relief. Avoid unsupported round numbers when records can establish the amount.

9.2 Settlement as an Information Event

A settlement communication can reveal how the opposing side values risk, but it should not be treated as an admission of liability. Keep settlement discussions segregated from the merits record and understand the applicable evidentiary rules before relying on them.

9.3 The Remedy Must Match the Defendant

A municipality, state agency, private contractor, individual official, and federal officer may have materially different exposure and immunity. Draft the prayer for relief defendant-by-defendant rather than as a generic demand.

PART X — ETHICS, SAFETY, AND PROFESSIONAL DISCIPLINE

10.1 Do Not Manufacture a Case

Never alter evidence, fabricate records, coach a witness into a false account, impersonate an official, access a system without authorization, threaten an opposing party, or misrepresent a procedural event. Such conduct can destroy an otherwise legitimate claim and may create independent criminal, civil, or disciplinary exposure.

10.2 Communications Protocol

Keep substantive communications professional and narrowly tailored. Do not confuse a demand for preservation with a threat. Do not confuse public criticism with discovery. Do not confuse persistence with harassment. The objective is a defensible record.

10.3 Witness Protection and Privacy

Sensitive personal information should not be unnecessarily published. Redact identifiers where required. Follow court sealing rules and protective orders. When documenting vulnerable populations, obtain informed consent when appropriate and avoid exposing people to retaliation merely to strengthen a narrative.

PART XI — TECHNOLOGY, SURVEILLANCE, AND THE MOSAIC PROBLEM

11.1 From Observation to Aggregation

Modern surveillance disputes often concern aggregation rather than a single observation. A vehicle visible from a public roadway is one fact; the persistent collection, indexing, retention, sharing, and analysis of location data can create a substantially different evidentiary and privacy question. The legal theory must be tied to the actual technology and the controlling jurisdiction.

11.2 Questions for a Surveillance Audit

• Who owns or operates the system?

• What data is collected?

• At what technical granularity?

• How long is it retained?

• Who can query it?

• Are searches logged?

• What vendors or subcontractors receive the data?

• What contractual restrictions apply?

• What policies govern disclosure?

• What legal authority is asserted for collection and access?

11.3 The Technical-Evidentiary Bridge

A technology allegation becomes useful when the investigator can document the system’s existence, operation, custodian, retention period, access pathway, and relationship to the alleged injury. The national guide should favor reproducible documentation over speculation about hidden capabilities.

PART XII — BUILDING A NATIONAL PUBLIC-INTEREST CASEBOOK

12.1 From Individual Case to Replicable Method

The national value of a pro se litigation project is not measured only by whether one plaintiff wins one case. A stronger institutional contribution is a documented method that other advocates, journalists, researchers, students, and attorneys can examine, critique, reproduce, and improve.

12.2 Casebook Standard

• Publish the operative facts without embellishment.

• Identify the procedural posture at every stage.

• Link legal propositions to primary authority.

• Distinguish allegations from findings.

• Report adverse rulings as prominently as favorable ones.

• Preserve source documents and publication provenance.

• Correct errors publicly and promptly.

• Do not publish confidential or protected information merely because it is interesting.

12.3 The National Platform

The long-term platform can combine an open-source litigation library, public-records methodology, technology-surveillance research, accessibility audits, documentary reporting, and educational programming. Storytelling Adventures Studio Inc. can serve as the publishing and documentary layer, while House of Mercy Ministry remains the community-outreach layer. Keeping those functions distinct strengthens credibility and governance.

12.4 Proposed Editorial Motto

Document first. Verify twice. Litigate precisely. Publish responsibly.

APPENDIX A — EVIDENCE AND PRESERVATION CHECKLIST

1. Create a master chronology.
2. Assign an exhibit number or evidence identifier.
3. Preserve original files where available.
4. Record source, date obtained, custodian, and method of acquisition.
5. Preserve relevant emails and attachments.
6. Identify likely ESI custodians.
7. Identify relevant devices and accounts.
8. Record known retention/deletion policies.
9. Send targeted preservation notices when appropriate.
10. Calendar every statutory, court, discovery, and response deadline.
11. Back up the case file using at least two controlled storage locations.
12. Keep an index that permits a third party to understand the file without oral explanation.

APPENDIX B — MODEL LITIGATION-HOLD NOTICE

Re: Preservation of Potentially Relevant Records

This correspondence provides notice that litigation is reasonably anticipated concerning [matter]. Please preserve potentially relevant records and electronically stored information within your possession, custody, or control, including communications, reports, photographs, video, logs, policies, contracts, system records, and other materials reasonably related to [defined subject] for the period [date range].

This request is intended to preserve potentially relevant information pending further identification and formal discovery. Please take reasonable steps consistent with applicable law and your ordinary legal obligations to prevent relevant information from being lost, altered, or destroyed. If a litigation hold has already been issued, please identify the responsible custodian or legal contact for preservation purposes.

APPENDIX C — PUBLIC-RECORDS REQUEST ARCHITECTURE

Agency	_____
Requester	_____
Date	_____
Subject	_____
Date range	_____

Record categories	_____
Custodian/system if known	_____
Preferred format	_____
Statutory basis	_____
Response deadline	_____

APPENDIX D — CASE CHRONOLOGY WORKSHEET

Date/Time	Event	Actor	Source/Exhibit	Legal significance	Next action

APPENDIX E — OPEN-SOURCE PUBLICATION STANDARDS

Every published case study should identify its source documents, procedural posture, publication date, and correction mechanism. Clearly label allegations, testimony, documentary evidence, judicial findings, and the author’s analysis. Where a court has rejected an argument, say so. Where a fact remains disputed, say so. The credibility of an open-source legal project depends upon intellectual honesty more than rhetorical force.

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Prepared October 2026 for development into a larger open-source publication. Future volumes should add jurisdiction-specific chapters, annotated primary authorities, sample discovery sets, records-request modules, digital-forensics protocols, and publication governance standards.